

Plaintiffs should be awarded sanctions on the reduced but reasonable amount of \$410 (\$350/hour x 1 hour + \$60 filing fee).

4.

CASE #	CASE NAME	HEARING NAME
CVME2504177	CASTANEDA VS WALMART	DEMURRER ON COMPLAINT FOR WRONGFUL TERMINATION OF LETICIA VERA CASTANEDA

Tentative Ruling:

SUSTAIN, without leave to amend, as to the 5th and 8th causes of action (based on the parties' agreement).

SUSTAIN, with leave to amend, as to the 4th cause of action.

This is an employment law wrongful termination action filed by Plaintiff Leticia Castaneda April 21, 2025 against Defendants Walmart, Inc. Wal-Mart Associates, Inc. and Paul Doe alleging 8 causes of action for 1) disability discrimination, 2) failure to provide reasonable accommodation, 3) failure to engage in the interactive process, 4) harassment/hostile work environment, 5) failure to prevent harassment/hostile work environment, 6) retaliation, 7) failure to permit use of sick leave, and 8) wrongful termination in violation of public policy. The Walmart Defendants filed their Answer then removed the matter to Federal Court.

Then on December 5, 2025, Rodel Sulangi was named as Paul Doe While the action was in Federal Court. Sulangi filed a demurrer to the Complaint on January 21, 2026, while the matter was still pending in Federal Court.

On March 11, 2026, Plaintiff attempted to file a First Amended Complaint, which was properly rejected by the court as the Walmart Defendants had filed their Answer to the Complaint cutting off Plaintiff's automatic right to file a first amended complaint. (CCP §472(a).) Accordingly, Plaintiff requires leave of court to file an amended complaint.

On March 24, 2026, the court ordered Sulangi to properly meet and confer with Castaneda, and thereafter either vacate the hearing, or file a declaration with the court regarding the meet and

confer process. Sulangi failed to do as the court directed. Accordingly, the court should set an OSC re: sanctions as to Sulangi for his failure to either dismiss this motion or file a declaration as directed by this court's explicit orders of March 24, 2026.

Plaintiff's counsel filed a declaration stating that the parties did meet and confer, that the parties were unable to agree to allow an amendment to be filed. However, it does not indicate that the parties met and discussed the merits of the demurrer.

Defendant's counsel also filed a declaration stating that the parties met and conferred via videoconference, during which the parties agreed that the 5th and 8th causes of action should be dismissed as to Defendant Sulangi, but could not agree with respect to the 4th cause of action.

Sulangi demurs to the 4th, 5th and 8th causes of action for harassment/hostile work environment, failure to prevent harassment/hostile work environment and wrongful termination alleged against him by Plaintiff on the grounds that they fail to state a cause of action and/or are uncertain. Specifically, Sulangi asserts that 1) as a matter of law, personnel management duties cannot serve as the basis for a harassment claim, and 2) the alleged conduct is not severe or pervasive.

In opposition, Plaintiff Castaneda asserts that she attempted to amend her complaint, but it was rejected by the court. As to the challenged causes of action, Plaintiff asserts that the 4th cause of action against Sulangi sufficiently states a cause of action a personnel management decision can be actionable and the allegations are sufficiently severe or pervasive. As to the 5th and 8th causes of action, Plaintiff states she did not intend to allege them against Sulangi.

The Complaint alleges in pertinent part as follows:

Plaintiff was employed by Walmart and was subjected to a campaign of harassment based on her disability. Defendant Sulangi (Paul Doe 1) was Plaintiff's supervisor.

Plaintiff had sciatic nerve pain that worsened over time and limited her ability to walk. Her doctor provided work restrictions of no prolong standing and other restrictions. Despite these restrictions Sulangi constantly placed her in the self-checkout station and would force her to stand throughout her shift. Each time that Ms. Castaneda informed Paul of her restriction, he simply stated towards to the effect of “I don’t care and you’re not special.” “You have to do what I tell you to do.”

In evaluating a demurrer, the court gives the pleading a reasonable interpretation by reading it as a whole and all its parts in their context. (*Moore v. Regents of University of California* (1990) 51 Cal.3d 120, 125.) In ruling on a demurrer, the court may consider only the challenged pleading and matters subject to judicial notice under E.C. §§451, 452. (C.C.P. §§430.30(a), 430.70; *Gould v. Maryland Sound Indus., Inc.* (1995) 31 Cal.App.4th 1137, 1144.) The sole issue raised by a demurrer is whether the facts pleaded state a valid cause of action, not whether they are true. Thus, no matter how unlikely or improbable, the plaintiff’s allegations must be accepted as true for the purposes of the demurrer. (*Requa v. Regents of University of California* (2012) 213 Cal.App.4th 213, 223 (citing *Del E. Webb Corp. v. Structural Material Co.* (1981) 123 Cal.App.3d 593, 604).) However, a demurrer does not admit contentions, deductions or conclusions of fact or law. (*Daar v. Yellow Cab Company* (1967) 67 Cal.2d 695, 713.) If the complaint fails to state a cause of action, the court must grant the plaintiff leave to amend if there is a reasonable possibility that the defect can be cured by amendment. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.)

A demurrer for uncertainty will be sustained only where the complaint is so bad that defendant *cannot reasonably respond*—i.e., he or she cannot reasonably determine what issues must be admitted or denied, or what counts or claims are directed against him or her. (*Khoury v. Maly's of Calif., Inc.* (1993) 14 Cal.App.4th 612, 616.) The Complaint is not uncertain.

FEHA prohibits an “employer ... or any other person, because of physical disability... [or] age, ... to harass an employee [or] an applicant.” (Gov. Code §12940(j)(1).) Harassing conduct includes ““epithets, derogatory comments or slurs on a basis enumerated in”” FEHA. (*Bailey v. San Francisco District Attorney’s Office* (2024) 16 Cal.5th 611, 626.)

To establish a prima facie case of unlawful harassment under Fair Employment and Housing Act (FEHA), a plaintiff must show (1) she was a member of a protected class; (2) she was subjected to unwelcome harassment; (3) the harassment was based on the plaintiff’s membership in an enumerated class; (4) the harassment unreasonably interfered with her work performance by creating an intimidating, hostile, or offensive work environment; and (5) the defendant is liable for the harassment. (*Martin v. Board of Trustees of California State University* (2023) 97 Cal.App.5th 149; Gov. Code §12940(j)(1).)

The Complaint alleges that Sulangi assigned her to work that violated her work restrictions and when she complained he said he didn’t care, and that she was not special. These facts do not rise to the level of harassment against Sulangi. Accordingly, the court sustains the demurrer to the 4th cause of action with leave to amend.

5.

CASE #	CASE NAME	HEARING NAME
CVME2511978	TOM VS MADRIGAL	DEMURRER ON COMPLAINT FOR BREACH OF CONTRACT/WARRANTY OF TOM

Tentative Ruling: SUSTAIN the demurrer entirely, with 30 days leave to amend.

On 10/3/2025, Tanya Tom and Sidney Ke (“Plaintiffs”) filed a complaint against Lisa Madrigal (“Madrigal”), Adam Sussley-House (“Sussley”), FIV Realty Co (“FIV”), and Mancee Elizabeth Reimbold (“Reimbold”). The complaint asserts the following causes of action: (1)